

		The court denies the request to construe the motion for summary judgment of the entire complaint as a motion for judgment on the pleadings of a single cause of action on the ground the two causes of action are duplicative. The court need not rule on Plaintiff's objections to Defendants' evidence. Plaintiff to give notice.
--	--	--

104	Chan v. Blue Ray Aquatics, 2025-01524694	MOTION TO APPEAR PRO HAC VICE – DENIED WITHOUT PREJUDICE The unopposed application of attorney David A. DuBois to appear pro hac vice on behalf of Defendant Blueray Aquatics, LLC is DENIED WITHOUT PREJUDICE. Moving Attorney met the requirements of California Rules of Court, rule 9.40 <u>except</u> that Moving Attorney did not: (1) state his residence pursuant to rule 9.40(d)(1), (2) establish proper service on the state Bar of California pursuant to rule 9.40(c)(1), and (3) state that he is not "[r]egularly engaged in substantial business, professional, or other activities in the State of California" pursuant to 9.40(a)(1), (a)(2), and (a)(3). The Court notes that Counsel need not provide his exact residence address but he must identify the state of his legal residence. This information is not provided in counsel's declaration. Moving attorney to give notice.
105	Dodds-Tsang v. Garden Grove Post Acute, 2025-01536667	MOTION TO COMPEL ARBITRATION – DENIED Plaintiff Yvette Dodds-Tsang sued Defendant Garden Grove Post Acute LLC ("Defendant") for elder abuse, willful misconduct, and medical malpractice/wrongful death in connection with the death of Plaintiff's mother, Ha Tu. All of Plaintiff's claims are asserted as survival